

SENATE No. 323

The Commonwealth of Massachusetts

PRESENTED BY:

Brendan P. Crighton

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing for phone free schools.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Brendan P. Crighton</i>	<i>Third Essex</i>	
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	<i>2/28/2025</i>

SENATE No. 323

By Mr. Crighton, a petition (accompanied by bill, Senate, No. 323) of Brendan P. Crighton and Mark C. Montigny for legislation to prohibit the use to personal electronic devices in schools. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for phone free schools.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 69 of the General Laws is hereby amended by adding the following
2 section:-

3 Section 38. (a) As used in this section, the following words shall have the following
4 meanings unless the context clearly requires otherwise:

5 “Board”, the board of elementary and secondary education.

6 "Commissioner", the commissioner of elementary and secondary education.

7 "Department", the department of elementary and secondary education.

8 “Personal electronic devices”, any electronic equipment capable of collecting, processing
9 or transferring data including, but not limited to, smartphones, cellular phones, tablets or gaming
10 devices.

(b) Each school district shall have a comprehensive policy to prohibit student access to personal electronic devices during the school day. Policies shall include restrictions that align with the developmental level of students and the structure of the school day in each grade level and school and shall consider guidance issued by the department. This policy shall not preclude the use of school-issued or sanctioned devices that serve a legitimate educational purpose.

Each school district shall engage in a public comment period to receive feedback from school leaders, educators, families, students and relevant stakeholders while developing the policy.

Each school district shall ensure that behavioral expectations related to personal electronic devices are included in the relevant student code of conduct and shall educate the students on issues related to the use of personal electronic devices, including, but not limited to: (i) cyberbullying; (ii) accessing or sharing inappropriate content; (iii) recording or taking photographs without consent; (iv) plagiarism; and (v) the unapproved use of artificial intelligence software and applications.

Each school district shall submit their policy as required under this subsection to the department for approval. To receive approval from the department, policies shall include a prohibition on access to personal electronic devices during the school day, including during times spent outside of the classroom, and specific procedures for collecting, isolating and returning personal electronic devices.

The department shall provide technical assistance to school districts for policy development and implementation.

SECTION 2. Not later than 6 months after the effective date of this act, the department of elementary and secondary education and the board of elementary and secondary education shall issue guidance for school districts to consider when drafting and adopting the policy required under section 38 of chapter 69 of the General Laws. Such guidance shall emphasize creating engaging spaces for learning and mitigating the negative impact that cell phones have on student learning and shall include considerations for specific policies and practices for elementary, middle, and high school students based on developmental readiness and maturity.

The guidance shall address areas including, but not be limited to: (i) provisions for school and student health and safety, including dedicated methods for parents to communicate with their children; (ii) exceptions to the policy based on a student's individualized education plan; (iii) accommodations under section 504 of the Rehabilitation Act, 29 U.S.C. section 794, or individualized health or learning plan or any other accommodations under state or federal law, including, but not limited to, title II of the Americans with Disabilities Act, 42 U.S.C. sections 12131–12165; (iv) compliance with applicable federal and state laws; and (v) impact on multilingual learners.

SECTION 3. Subsection (b) of section 38 of chapter 69 of the General Laws shall take effect not later than six months after the department of elementary and secondary education has issued its guidance.